



File No.: EXP202403915

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 28, 2022, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against B.B.B., with NIF ***NIF.1 (hereinafter, the defendant).

The grounds for the complaint are that Dr. C.C.C. (hereinafter, Ms. C.C.C.), who performed plastic surgery on the complainant, provided B.B.B. (hereinafter, Mr. B.B.B.) with before and after photos of the complainant's surgery.

These photos have been published by the defendant for the promotion of his private plastic surgery clinic on the social networks Facebook and Instagram.

The complainant submits a notarized record dated July 5, 2022, regarding the publicity and use of her medical data without her consent.

Relevant documentation submitted by the complainant:

- Copy of the notarized record dated July 5, 2022, regarding the publicity and use of her medical data without her consent.
- Copy of the Complaint and claim filed on July 18, 2022, with Hospital ***HOSPITAL.1 for the same facts as those stated in the complaint submitted to the AEPD.
- Copy of the response from Hospital ***HOSPITAL.1 dated August 2, 2022.
- Copy of the medical discharge report of the complainant dated January 11, 2017, issued by Ms. C.C.C.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to Ms. C.C.C. and the defendant on February 14, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

Both notifications, which were carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), were received on February 15, 2023, as evidenced by the acknowledgment of receipt in the file.

On April 29, 2023, a response to the AEPD's notification was received, in which the defendant states the following:

- On January 30, 2020, Ms. C.C.C. and he reached a commercial agreement whereby Ms. C.C.C. could use the facilities of the defendant's clinic in Cuenca (commercial name (...)) for her healthcare consultation and follow-up work with her clients/patients as a plastic surgeon, without performing any surgeries in his facilities.
- Furthermore, taking advantage of the visibility that the defendant has on social media, it was agreed that he would publish some of Ms. C.C.C.'s work, as long as she indicated it to him. Publishing the work means publishing before and after images of the surgeries that Ms. C.C.C. performs.
- He states that he does not handle personal data of Ms. C.C.C.'s patients unless it is the publication of such data, being the data processor for Ms. C.C.C.
- He also wants to clarify that he works as an aesthetic doctor in Cuenca, and cannot perform plastic surgery, thus he does not need any publicity regarding the results of such surgeries to increase his clients or benefit from treatments that, as a professional, he cannot perform.
- There is no direct relationship between the complainant and him. All relationships are established through Ms. C.C.C.
- On January 30, 2020, the defendant and Ms. C.C.C. signed the Data Processor Agreement, as established in Article 28.3 of the General Data Protection Regulation, where Ms. C.C.C. authorized the defendant to process personal data (ANNEX 1 contract).
- In said contract, the purposes were:

o "Processing of data of patients/clients attended in the facilities of the data processor's clinic by the data controller."

o "Processing of personal data of patients/clients for publicity in facilities, media, and social networks of the activities of the data controller, as long as the controller indicates it in some communication."

- On December 12, 2021, after a telephone conversation with Ms. C.C.C., in which the defendant was instructed to publish on social media some images of the results of one of her surgeries, Ms. C.C.C. sent the defendant an email with the photos. He was completely unaware of the...

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Claimant, nor her name, only that the doctor had performed the operation in Albacete.

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Acknowledges that the publication of the images was made without prior consent from the claimant towards him, but being the defendant responsible for the processing of D^a. C.C.C.'s data, she should have obtained the claimant's consent.

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At the moment of receiving the complaint from the claimant, whom he did not know, and when he was informed which photos were involved, he immediately proceeded to delete the photos on the social networks Instagram and Facebook, retaining only the email from D^a. C.C.C. for evidentiary purposes, which will also be deleted upon the conclusion of the complaint.

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He was fulfilling the tasks assigned to him as the data processor for D^a. C.C.C., with the latter being the data controller, as a consequence of the existing commercial relationship between both parties.

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He has not carried out any improper processing nor has he conducted an illegitimate processing of the claimant's data, as he only acted in accordance with the purposes assigned by D^a. C.C.C., who is responsible for such processing and for obtaining the informed consent of her client, the claimant. The relevant documentation provided by the defendant is as follows:

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Copy of the Data Processing Agreement signed between D. B.B.B. and D^a. C.C.C. In the second stipulation of that contract under the heading "Purpose of the processing," it is established that:

o Data of patients/clients attended in the facilities of the data processor by the data controller.

o Advertising in facilities, media, and social networks of the activities of the security controller, provided that the controller indicates this in some communication.

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Copy of the email sent to him by D^a. C.C.C. on 12/12/2021, with the subject: "more photos of (...) doubles," and which includes 4 attachments, two containing photos of the claimant and two others that appear hidden.

On 22/05/2023, a letter was received from D^a. C.C.C. in which, among other aspects, she states that:

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Regarding the decision made concerning this complaint, first of all, it should be noted that she became aware of the publication of the images on the social networks of the Clinic (...), the trade name used by D. B.B.B. (the defendant) as a result of the complaint filed by the claimant with the Customer Service of the ***HOSPITAL.1. After receiving this complaint, she immediately contacted the Clinic (...), the trade name used by D. B.B.B. (the defendant), which proceeded to delete the aforementioned images.

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The purpose for which the images were taken was "for the purposes of advances in medical education (...) for medical, scientific, or educational purposes"; as stated in document no. 1 attached to this letter, which consists of the consent document for the surgery signed by the claimant; being unaware of the publication on the social media profiles of the Clinic (...), the trade name used by D. B.B.B. (the defendant) until the moment of receiving the claimant's complaint.

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She was unaware of the publication of the images until the moment of the complaint to the Customer Service of the ***HOSPITAL.1.

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It should be emphasized that the publication of the images was made on the social networks of the Clinic (...), the trade name used by D. B.B.B. (the defendant) and not on her own.

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She is aware that the Clinic deleted the images immediately upon being informed of the complaint they had received through the ***HOSPITAL.1.

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As of the date of this letter, the photographs are not available nor is there any possible way to locate them.

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Attached as Annex I is a Report on the causes that have led to the incident that originated the complaint. In this Report, among other aspects, it indicates:

- o That on January 10, 2017, D^a. C.C.C. operated on the claimant in an aesthetic surgery procedure that took place at the current Clinic ***HOSPITAL.1.
- o On the same day, the claimant signed the consent document for the procedure, in which section 6 expressly states the consent for photographing or filming the operation for medical, scientific, or educational purposes.
- o That on January 11, 2017, the claimant was discharged.
- o That on July 18, 2022, the claimant filed a complaint with the patient care service of the ***HOSPITAL.1.
- o That after receiving the complaint, she made direct contact with the Clinic (...), the trade name used by D. B.B.B. (the defendant), which proceeded to immediately delete the images from their social media profiles.
- o That on February 15, 2023, she received notification of the previous transfer of the complaint and request for a report.

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That in relation to the causes motivating the claim, it appears that the Clinic (...), the trade name used by Mr. B.B.B. (the respondent), published images taken before and after the operation of the claimant on its Facebook and Instagram profiles without her consent.

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That she was unaware of this publication; therefore, when she received the claim from the claimant, she immediately contacted the Clinic (...), the trade name used by Mr. B.B.B. (the respondent), who in turn removed the images from their social media profiles.

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That as of the date of this document, the images are still not available and there is no possibility of them being accessible on the internet.

- Attached as Annex II is a Report on the measures adopted to prevent similar incidents, dates of implementation, and controls carried out to verify their effectiveness, as outlined in the following table:

Measure	Date of Implementation	Control
Update and improvement of the consent document for the surgical intervention	May 2023	

Annual review of the document to verify its adequacy and adapt it, if necessary, to possible new situations.

Global review of the level of compliance with the GDPR and LOPDGDD in professional activity.

May-June 2023

Annual review to verify compliance with regulations, detect new treatments, and adopt necessary measures.

Relevant documentation provided by Ms. C.C.C.:

- Annex I Report on the causes that motivated the incident that led to the claim.
- Annex II Report on the measures adopted to prevent similar incidents, dates of implementation, and controls carried out to verify their effectiveness.
- Document No. 1 Copy of the document of "CONSENT FOR SURGERY/PROCEDURE OR TREATMENT" signed by the claimant in which she authorizes Ms. C.C.C. to perform the procedure or treatment: (...). And in section 6 it states that: "For the purposes of advances in medical education, I consent to the entry of observers into the operating room and the photographing or filming of the operation(s) or procedure(s) to be performed, for medical scientific or educational purposes since my identity will not be revealed in the images."

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THIRD: On March 28, 2023, in accordance with Article 65 of the LOPDGDD, the claim submitted by the claimant was admitted for processing.

FOURTH: The General Subdirector for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

From the facts contained in the claim, as well as from the documents submitted with it by the claimant and the response to the transfer and the documents attached, made by Mr. B.B.B. (the respondent) and by Ms. C.C.C., it is undisputed by the parties that Mr. B.B.B. published on the social media profiles (Facebook and Instagram) of the Clinic (...), which he uses as a trade name, photographs of the before and after of the operation of (...) that Ms. C.C.C. performed on the claimant in January 2017. And that this publication was made without the consent of the claimant.

It has also been established that there has never been any type of contractual relationship between the claimant and Mr. B.B.B. (the respondent), or the Clinic (...), which he uses as a trade name, as recognized by the claimant in her claim and by Mr. B.B.B. (the respondent) in his response to the transfer.

It has been established that the claimant underwent an operation of (...), performed by Ms. C.C.C. and granted her consent for her to carry out the "photographing or filming of the operation(s) or procedure(s) to be performed, for medical scientific or educational purposes since my identity will not be revealed in the images," although only for "the purposes of advances in medical education," not for commercial advertising purposes of Ms. C.C.C.'s activity or of third parties with whom she collaborated. And that the published photographs were taken by Ms. C.C.C. when she performed the aforementioned operation in January 2017.

The photographs were sent from the email ***EMAIL.1 to the email ***EMAIL.2 on 12/12/2021, with those email addresses belonging to Ms. C.C.C. and the respondent, respectively.

These photographs were not published on the mentioned profiles (Instagram and Facebook) of the Clinic (...), the trade name used by Mr. B.B.B., on 10/02/2023, according to the evidence collected by the AEPD for this purpose.

According to statements from Ms. C.C.C. and Mr. B.B.B., these photographs would have been removed from social media following the claim submitted by the claimant to Hospital ***HOSPITAL.1 in July 2022, and they remain unavailable and there is no possibility of them being accessible on the internet.

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The contractual relationship between Ms. C.C.C. and Mr. B.B.B. has been established in the data processing agreement existing between both parties dated 30/01/2020. In this contract, the purposes are stated as follows: The processing of "data of patients/clients attended in the facilities of the Clinic by the data processor." As well as "advertising in facilities, media, and social networks of the activities of the data controller, provided that the controller indicates this in some communication."

Mr. B.B.B. has provided a communication (email) from Ms. C.C.C. in which she sends him the photos published by him on the social media profiles of the Clinic (...), the trade name used by Mr. B.B.B.

FIFTH: On March 18, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6.1 of the GDPR and Article 9 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the accused party submitted a written statement of allegations in which they stated the following:

"The facts reported do not correspond to the factual reality, as it is assumed that the photographs published on social media were for my own benefit, which is completely contrary to reason, since I was only the data processor as justified in the submission of the documents previously provided to the file. The reality is that Ms. C.C.C. has leased a clinic in the premises owned by me, and that the advertising is for surgical treatments, having nothing to do with my activity since I only perform aesthetic treatments without surgical interventions, so it is difficult for me to benefit from the publication of these photographs.

I must say that I have not engaged in any infringing conduct and therefore the sanction imposed on me should be null and void, firstly in accordance with Article 6.1 of the GDPR.

In accordance with what I have stated previously and with what is recorded in the file, as you transcribe, I am only the data processor, with the plastic surgeon Ms. C.C.C. being the one who must obtain the consent of the patient to whom she takes the before and after photos of the intervention, and who, as I have demonstrated and is already recorded in the file, sent me those photos and had the patient's consent, as also recorded in the file, being unaware, as I was not present at the time she obtained it, whether it was for one purpose or multiple purposes as required by Article 6.1 of the GDPR.

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Therefore, since I am not responsible for obtaining this consent, as I neither participated in the intervention nor know the claimant at all, I could not act negligently as indicated."

SEVENTH: On May 7, 2024, the instructor of the procedure agreed to reproduce for evidentiary purposes the claim filed by A.A.A. and its documentation, the documents obtained and generated during the admission phase of the claim, and the report of prior investigative actions that are part of procedure AI/00146/2023.

Likewise, the allegations to the initiation agreement of the referenced sanctioning procedure presented

by B.B.B., and the accompanying documentation are reproduced for evidentiary purposes.

EIGHTH: On May 8, 2024, a resolution proposal was issued proposing the following:

That the Director of the Spanish Agency for Data Protection sanctions B.B.B., with NIF ***NIF.1, for an infringement of Article 6.1 of the GDPR and Article 9 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of 5,000 euros for the infringement of Article 6.1 of the GDPR, and a second fine of 5,000 euros for the infringement of Article 9 of the GDPR, totaling 10,000 € (ten thousand euros), That the Director of the Spanish Agency for Data Protection orders B.B.B., with NIF ***NIF.1, to document compliance with the adopted measures to prevent the photographs of patients from this or another clinic from being disseminated on social networks without the necessary legitimization, in accordance with Article 58.2.d) of the GDPR, within one month from the notification of the resolution of this sanctioning procedure.

NINTH: On June 3, 2024, the entry of the statements made by the respondent in response to the resolution proposal was registered, indicating the following:

"The AEPD on page 9 of its resolution proposal states as proven that I am a plastic surgeon, but this is not true, as this premise is very important for the proposed administrative sanction since I repeat that I have not profited from the publication of those photographs; I am merely the owner of the property where the Doctor, who is indeed a plastic surgeon, has a rented consultation, so neither was the surgery performed in my establishment nor do I know this person at all, only as a data processing agent did I do what the data controller indicated to me, understanding at all times that the consent the doctor has is valid for such publication, although this is something I do not collect, as I am concerned with obtaining the consent of the patients who authorize me for my activities regarding the aesthetic treatments I perform.

The claimant states that B.B.B. published on the social networks Facebook and Instagram the before and after photos of the plastic surgery intervention performed by Ms. C.C.C. on the claimant A.A.A. B.B.B. acted as the data processor of Dr. C.C.C., responsible for obtaining informed consent from her patient, and ensuring compliance with the current regulations LOPDGDD 3/2018, of December 5. (The surgical intervention and consequently her consent, as the claimant states, was performed prior to the entry into force of the Law, a fact that B.B.B. was completely unaware of.)

It has also been made clear that the claimant did not contact me directly to request that I remove the photographs, but even so, at the moment the Doctor indicated it to me, I removed them from my networks.

Regarding the indication that it has been done in order to prevent this from happening again, the images have been manually deleted both on Instagram and on Facebook of the Clinic (...). (commercial name and identifying activity of B.B.B.'s aesthetic medicine).

A sweep has also been conducted on Google search to evaluate the removal of the images and videos from the Facebook and Instagram pages, the links of which we attach for verification.

***URL.1 and ***URL.2

That is why all images of Ms. A.A.A. and links to the content on the social networks Facebook and Instagram were removed.

Additionally, the same procedure has been followed with images or videos containing identifiable data of any other person, or they have been pixelated, despite having informed consent from the individuals, clients/patients of B.B.B. appearing in ***URL.1 and ***URL.2."

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: Dissemination on the social networks Facebook and Instagram of photos of the claimant without her consent, to advertise the private plastic surgery clinic of the respondent.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of the GDPR to each supervisory authority and

as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions...

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in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, it is reported that the respondent, owner of the Clinic (...), has disseminated on social media before-and-after photos of the surgical intervention to which the claimant underwent, to advertise the clinic of the respondent, without having obtained the consent of the claimant.

These photos were published by the respondent for the promotion of their private plastic surgery clinic on the social media platforms Facebook and Instagram.

The AEPD, after conducting the investigative actions indicated in the background, makes the following considerations:

1º.- It has been established that Ms. C.C.C. performed a treatment/surgery of (...) on the appellant in 2017.

2º.- During said operation/treatment, Ms. C.C.C. took photographs of the before and after of said treatment, having obtained the consent of the claimant for the photographing for medical, scientific, or educational purposes. It is not recorded that the claimant gave their consent for the photographing for commercial advertising purposes of the activity of Ms. C.C.C. or of third parties with whom she collaborated.

3º.- The photographs of the aforementioned treatment/surgery were sent from the email ***EMAIL.1 to the email ***EMAIL.2 on 12/12/2021 and published on the social media profiles of the Clinic (...), the trade name used by Mr. B.B.B., without having obtained the consent of the claimant.

4º.- There is a data processing assignment contract, dated 30/01/2020, between Ms. C.C.C. and Mr. B.B.B., stating in said contract the purposes of the same: The processing of "data of patients/clients attended in the facilities of the Clinic by the data processor on behalf of the data controller." As well as "advertising in facilities, media, and social networks of the activities of the data controller, provided that the controller indicates this in some communication."

5º.- In the evidence collected by the AEPD on 10/02/2023, the photographs subject to the complaint were not published on the social media profiles (Instagram and Facebook) of the Clinic (...), the trade name used by Mr. B.B.B..

III

Response to the allegations presented

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The respondent, in response to the initiation agreement, submitted a written statement on April 3, 2024, asserting that they are not responsible for the facts attributed to them as they did not participate in the surgical intervention of the claimant, nor do they know the claimant, and the dissemination of such photographs does not provide them with any benefit since they only perform aesthetic treatments without surgical interventions, thus they are exempt from all responsibility as they are only in charge of the treatment and not responsible.

The respondent, in response to the proposed resolution, submitted a written statement on June 3, 2024, indicating that they are not a plastic surgeon, but the owner of the property where the surgeon C.C.C. practices, and that the consent obtained by the doctor is valid for the publication of the photographs of the claimant.

The respondent has also stated that as they are not a surgeon, they did not participate in the

intervention performed on the claimant, and that the publication of the images does not provide them with any benefit, as they are not the surgeon who operated on the claimant, but rather the owner of the Clinic (...), and that the consent given by the claimant to be operated on by C.C.C. is valid for the publication of the before and after photographs of the operation performed on the claimant.

Furthermore, the respondent points out that the claimant did not contact them to request the removal of the photographs, but nonetheless, at the moment the surgeon C.C.C. indicated, they manually removed the images from both Instagram and Facebook of Clinic (...), and the same procedure has been followed with images or videos containing identifiable data of any other person.

In response to such statements, it should be noted that it has been verified that the aesthetic operation to which the claimant underwent was performed at a center different from the clinic of the respondent, as the claimant was operated on at Clinic ***HOSPITAL.1, on January 10, 2017, and the clinic advertised by the respondent is Clinic (...), therefore it is a verified fact that whether or not the respondent is a surgeon, they did not participate in the intervention performed on the claimant, and there is no contract linking them to the claimant, and therefore they would not have been authorized to treat the photographs of the before and after of the operation performed by C.C.C. on the claimant. Thus, using such photographs to advertise the Clinic of which they are the owner implies the pursuit of profit or benefit.

Additionally, the photographs of the claimant were taken before and after the aesthetic operation performed by the respondent on the claimant in 2017, that is, years before the formalization of the treatment contract between the claimant and C.C.C.

Therefore, the AEPD must indicate that we are not talking about a withdrawal of consent, nor any other cause of legitimization that would authorize the treatment of the personal data of the respondent, in this case, their image, thus it is not required that the claimant exercise their right to cancellation, nor any of the other rights recognized in the GDPR, for the treatment of such photographs by the respondent entity to cease, as this would only apply if the claimant had ever granted the respondent their authorization for such treatment.

In short, the respondent is the exclusive responsible party for the dissemination of the before and after photos of the operation performed on the claimant on social media.

IV

Article 6.1 of the GDPR

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful, stating the following:

"1. The processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera

or video camera systems for the purpose of ensuring the safety of persons and property, as well as their facilities.”

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It is considered that the facts presented, namely, that the respondent party has used before and after photos of the intervention by C.C.C., without the express consent of the claimant party, nor any other cause of legitimization, as the holder of the image of the photographs in dispute, with the aim of publishing them on social media and promoting their clinic, could constitute an unlawful processing of personal data, which would imply a violation of Article 6 of the GDPR.

The respondent party claims that the claimant signed her consent in 2017, authorizing the intervention itself and the taking of photographs and/or recordings, but not the communication of those photos to third parties.

Furthermore, Dr. C.C.C. and the respondent party state that the before and after photos used to promote the respondent party's clinic were obtained with the consent of the claimant party, as it was produced in the B.B.B.o of a data processing contract entered into in 2020.

In response to such allegations from the respondent party, the AEPD considers that the publication of the before and after photos of the claimant's aesthetic operation cannot be justified by the contract entered into in 2020 between the respondent party and C.C.C., and therefore cannot be understood as having the consent of the claimant party, for the following reasons:

First, the aesthetic operation to which the claimant was subjected was performed at a different center than the respondent party's clinic, as the claimant was operated on at the ***HOSPITAL.1 Clinic on January 10, 2017, and the clinic advertised by the respondent party is the Clinic (...).

Second, the photos of the claimant were taken before and after the aesthetic operation performed by the respondent party on the claimant in 2017, that is, years before the formalization of the data processing contract between the claimant and C.C.C.

Therefore, the respondent party would be the sole responsible party for the dissemination of the before and after photos of the operation performed on the claimant on social media.

In this regard, it should be noted that the present procedure focuses on the alleged responsibility of the respondent party for the dissemination of the before and after photos of the operation performed by C.C.C. on the claimant.

V

Classification under Article 6.1 of the GDPR

The known facts could constitute an infringement, attributable to the respondent party, classified under Article 6.1 of the GDPR, as indicated previously in legal basis II, which could imply the commission of an infringement classified under Article 83.5 of the GDPR, which states the following:

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“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;”
For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following

infringements are considered very serious and shall be subject to a three-year statute of limitations:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679. (...)

VI

Proposal for sanction for infringement of Article 6.1 of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are effective, proportionate, and dissuasive in each individual case.”

Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures contemplated in Article 58, paragraph 2, letters a) to h) and j).

When deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the affected parties;

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d) the degree of responsibility of the data controller or the data processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32;

e) any previous infringement committed by the data controller or the data processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or the data processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or the data processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.”

Regarding item k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having a data protection officer when not mandatory.”

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In accordance with the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in this case on the respondent as the responsible party for an infringement classified under Article 83.5.a) of the GDPR, the following aggravating factors are initially assessed as concurrent:

- Intentionality/Negligence in the infringement (item b): the notable negligence observed in the commission of the infringement, in that the respondent has disseminated on social media photographs of the complainant, provided by C.C.C., without obtaining consent or any other legitimate basis from the complainant.

It is appropriate to graduate the sanction to be imposed on the respondent and set it at the amount of €5,000 in accordance with Article 58.2 of the GDPR.

VII

Adoption of measures for the infringement of Article 6.1 of the GDPR

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, which states the following:

“Each supervisory authority shall have all of the following corrective powers indicated below:

d) to order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe. In this specific case, the respondent and C.C.C., the latter being the person who provided the photos to the respondent, have stated that as soon as they became aware of the complaint filed on 18/07/2022, the photographs of the complainant were removed.

Furthermore, in response to the proposed resolution, the respondent has demonstrated that measures have been taken to ensure that their clients' data cannot be processed again without the legitimacy required by data protection regulations, for which they have conducted a sweep on Google to evaluate the removal of images and videos from Facebook and Instagram pages, the links of which are attached for verification.

***URL.1 and ***URL.2

Therefore, it is confirmed that all images of the complainant and links to the content on the social media platforms Facebook and Instagram have been removed.

Additionally, similar actions have been taken with images or videos containing identifiable data of any other person, whether clients or patients of B.B.B., appearing in ***URL.1 and ***URL.2.

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VIII

Article 9 of the GDPR

Article 9 of the GDPR establishes the following:

1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, health data, or data concerning the sexual life or sexual orientation of a natural person is prohibited.

2. Paragraph 1 shall not apply when one of the following circumstances occurs:

a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except where Union or Member State law provides that the prohibition referred to

in paragraph 1 may not be lifted by the data subject;

b) the processing is necessary for compliance with a legal obligation to which the data controller is subject or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

c) the processing is necessary to protect the vital interests of the data subject or of another natural person, in the event that the data subject is not physically or legally able to give consent;

d) the processing is carried out in the course of legitimate activities by a foundation, association, or any other not-for-profit body with a political, philosophical, religious, or trade union aim, provided that the processing relates solely to the members of the body or to persons who have regular contact with it in connection with its purposes and that the personal data are not disclosed outside that body without the consent of the data subjects;

e) the processing concerns personal data which the data subject has made public;

f) the processing is necessary for the establishment, exercise, or defense of legal claims or whenever courts are acting in their judicial capacity;

g) the processing is necessary for reasons of substantial public interest, based on Union or Member State law, which must be proportionate to the aim pursued, respect the essence of the right to data protection, and provide for suitable and specific measures to safeguard the rights and interests of the data subject;

h) the processing is necessary for purposes of preventive or occupational medicine, for the assessment of the working capacity of the employee, for medical diagnosis, for the provision of health or social care or treatment, or for the management of health or social care systems and services, based on Union or Member State law or pursuant to a contract with a health professional and subject to the conditions and safeguards referred to in paragraph 3;

i) the processing is necessary for reasons of public interest in the area of public health, such as protecting against serious cross-border threats to health, or ensuring high standards of quality and safety of health care and of medicinal products or medical devices, based on Union or Member State law which provides for suitable and specific measures to safeguard the rights and freedoms of the data subject, in particular the confidentiality of health data;

j) the processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89(1), based on Union or Member State law, which must be proportionate to the aim pursued, respect the essence of the right to data protection, and provide for suitable and specific measures to safeguard the rights and interests of the data subject.

3. Personal data referred to in paragraph 1 may be processed for the purposes referred to in paragraph 2, letter h), when the processing is carried out by a professional subject to the obligation of professional secrecy, or under his or her responsibility, in accordance with Union or Member State law or with the rules established by the competent national authorities, or by any other person also subject to the obligation of secrecy in accordance with Union or Member State law or the rules established by the competent national authorities.

4. Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or data concerning health.

In this case, the dissemination on social networks by the respondent of before-and-after photos of the cosmetic surgery performed by Dr. C.C.C. on the claimant would violate Article 9.1 of the GDPR, as health data has been disseminated, which is particularly protected under Article 9.1 of the GDPR.

It should also be noted that we do not find ourselves in any of the exceptional cases under Article 9.2 of the GDPR that would allow for the lifting of the prohibition on processing these data, so we would be facing a supposed violation.

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Violation of Article 9 of the GDPR, as previously indicated.

IX

Classification of Article 9 of the GDPR

The violation of Article 9 of the GDPR, for which the respondent is held responsible, is provided for in Article 83.5 of the GDPR, which states:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 Euros or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

In turn, the LOPDGDD in its Article 72.1.e) qualifies as a very serious infringement, for the purposes of prescription, “The processing of personal data of the categories referred to in Article 9 of Regulation (EU) 2016/679 without any of the circumstances provided for in that provision and in the article of this Organic Law.”

X

Proposal for Sanction for Violation of Article 9 of the GDPR

In order to determine the administrative fines to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, provisions already indicated in Recital VI.

In accordance with these provisions, for the purpose of setting the amount of the fine to be imposed on the respondent as responsible for a violation classified in Article 83.5.a) of the GDPR, the following factors are considered concurrent in this case, as aggravating factors:

- Intentionality/Negligence in the violation (paragraph b): the notable negligence observed in the commission of the violation, to the extent that the respondent, responsible for processing health data, data especially protected by data protection regulations, has disseminated on social networks to publicize their clinic, photographs of the claimant that were provided by C.C.C., despite not being in any of the exceptional cases that allow for their processing under Article 9.2 of the GDPR.

It is appropriate to graduate the sanction to be imposed on the respondent and set it at the amount of €5,000 in accordance with Article 58.2 of the GDPR.

XI

Adoption of Measures for the Violation of Article 9 of the GDPR

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It is agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, which states the following:

“Each supervisory authority shall have all of the following corrective powers indicated below:

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period; In this specific case, the respondent and C.C.C., the surgeon who provided the photographs of the claimant, have stated that as soon as they became aware of the complaint filed on 18/07/2022, the photographs of the claimant were removed.

Furthermore, in response to the proposed resolution, the respondent has demonstrated that measures have been taken to ensure that the data of their clients cannot be processed again without the legitimization required by data protection regulations, for which they have conducted a sweep on Google to evaluate the removal of images and videos from Facebook and Instagram pages, the links of which are attached for verification.

***URL.1 and ***URL.2

Therefore, it is confirmed that all images of the claimant and links to content on the social networks Facebook and Instagram have been removed.

Additionally, the same procedure has been followed with images or videos containing identifiable data of any other person, whether clients or patients of B.B.B., that appear in ***URL.1 and ***URL.2. Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for a violation of Article 6.1 of the GDPR and Article 9 of the GDPR, classified in Article 83.5 of the GDPR, a fine of €5,000 for the violation of Article 6.1 of the GDPR, and a second fine of €5,000 for the violation of Article 9 of the GDPR, amounting to a total of €10,000 (ten thousand euros),

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once that period has elapsed.

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This resolution shall be executed, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day

following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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